

**CONFIDENTIAL — NOT FOR DISTRIBUTION WITHOUT CONSENT OF THE DISCLOSER**

## **SUPPORTING TESTIMONY — PROTECTED DISCLOSURE CONTEXT AND PERSONAL IMPACT**

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**DATE: 2 April 2026** | **TO: GEMS Board of Trustees (for context only — confidential)**

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I, Wilbur William Matthee, submit this statement in support of my formal Protected Disclosure dated 2 April 2026. This testimony provides full context regarding the events that gave rise to the disclosure, the retaliatory conduct I experienced, and the consequences I have suffered as a direct result of raising legitimate clinical governance concerns.

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### **1. Professional Background**

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I am a Registered Nurse Specialist with approximately 18 years of clinical and governance experience, including postgraduate qualifications at NQF Level 8.

My qualifications include:

- Postgraduate Diploma in Health Services Management (NQF Level 8)
- Bachelor of Technology in Nursing (BTech Gen Pn)
- Registered competencies in Psychiatry, Midwifery, and Community Nursing

I am also the founder of EthicHawks, a forensic governance consultancy based in Cape Town, registered to provide governance risk analysis and protected disclosure support.

My clinical character has been attested to by Dr Priscilla Ohm, Mitchell's Plain District Hospital Emergency Unit, who has noted:

- Strong clinical judgement and respect for patient dignity
  - Effective communication in high-pressure environments
  - Ability to de-escalate critical situations with calm and professionalism
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### **2. Employment Role and Governance Responsibilities**

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- Case Manager — GEMS Active Disease Risk Management Unit (Medscheme)
- Acting Chairperson, Health and Safety Committee — managing 13 staff across three floors

These roles carried both clinical accountability and formal governance obligations, including the duty to escalate material risks.

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### **3. Disclosure of System Failure**

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In October 2025, I identified the Gexus–DMS integration failure described in my formal disclosure. I conducted system analysis, obtained a Root Cause Analysis confirming the structural nature of the failure, and formally escalated the matter with 38 supporting attachments via a Priority 1 Material Risk Report submitted on 9 December 2025.

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#### 4. Ethical Refusal and Documented Position

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Following escalation, I was instructed by management to contact a 75-year-old GEMS member to “gently probe” non-adherence — despite documented evidence that the communication was incorrect and the integration failure remained unresolved.

I formally declined, stating in writing:

| *“Given that the integration gap still exists, I will not contact the member at this time.”*

This refusal was made on clinical and ethical grounds, consistent with my obligations as a Registered Nurse under the SANC Code of Ethics and the Nursing Act 33 of 2005.

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#### 5. Retaliation

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Following my ethical refusal and disclosure, I experienced the following retaliatory conduct:

- I was formally accused of insubordination
- In a recorded meeting, my manager stated:

| *“You made a case of harassment against me so I can make a case of harassment against you.”*

- A public message in a team communication forum referred to me by the name “Wilma” — constituting gender identity discrimination in a workplace setting
- A formal written admission by Senior HR Business Partner Cheryl-Dawn Modern (dated 19 January 2026) confirmed B-BBEE fronting within the organisation — an admission that formed part of my escalation and was subsequently suppressed
- The Chief Risk Officer (Monwabisi Kula) issued an email on 18 December 2025 that I characterise as the active suppression of my Priority 1 Material Risk Report — this constitutes the primary evidence of wilful governance misconduct

These events collectively constituted a hostile working environment in direct response to protected disclosure activity.

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#### 6. Unlawful Financial Deduction

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In July 2025, an amount of R14,811.77 was deducted from my salary while I was on documented psychiatric leave. This deduction represented 40.47% of my monthly salary.

This deduction:

- Exceeded the statutory 25% cap under Section 34 of the Basic Conditions of Employment Act (BCEA)
- Was made without my written consent
- Was applied while I was on formally approved and documented psychiatric sick leave

When I confronted my manager with the applicable company policy confirming the 25% statutory cap, she responded:

| *“What is illegal.”*

This matter is the subject of a Section 77A BCEA Labour Court claim filed on 5 March 2026 (Registrar F. Ismail), supported by CCMA Certificates of Non-Resolution WECT23564-25 and WECT24486-25.

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## 7. Personal Impact and Consequences

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The cumulative consequences of the unlawful deduction, retaliation, and institutional failures are severe and ongoing:

- Loss of financial stability and inability to meet basic obligations
- Loss of SANC professional registration due to inability to pay R870 in annual fees — this constitutes occupational detriment within the meaning of the Protected Disclosures Act
- Loss of accommodation; as of 2 April 2026, I am homeless
- Seizure of personal possessions by loan sharks
- No access to running water since January 2026
- Forced withdrawal of R48,400 in retirement savings to meet basic survival needs

I have been formally diagnosed with the following conditions by Dr Jacques Malan, Specialist Psychiatrist (FCPSYCH(SA)):

- Severe depression
- Post-traumatic stress disorder (PTSD)

These diagnoses are directly causally linked to the occupational circumstances described herein.

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## 8. Institutional Recourse Sought — No Substantive Remedy

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I approached the following eleven institutions seeking remedy. None provided substantive relief:

| Institution             | Reference / Action                       | Outcome                                                   |
|-------------------------|------------------------------------------|-----------------------------------------------------------|
| CCMA                    | WECT23564-25 / WECT24486-25              | Certificates issued; commissioner bias documented         |
| Labour Court            | Filed 5 March 2026 — Registrar F. Ismail | Portal obstruction; registrar non-response documented     |
| Western Cape High Court | Case No. 2026-066952                     | Struck from roll; costs order; Rule 42 rescission pending |

| Institution                       | Reference / Action            | Outcome                                                     |
|-----------------------------------|-------------------------------|-------------------------------------------------------------|
| Council for Medical Schemes       | Jurisdiction declined         | Declined twice; referral basis not established              |
| B-BBEE Commission                 | Case No. 5/02/2026            | Investigation underway; critical evidence submitted         |
| SAPS                              | Criminal case attempted       | Refused to open case                                        |
| Department of Employment & Labour | Formal notification submitted | Seven weeks of silence                                      |
| SAHRC                             | Formal submission             | Seriousness acknowledged; redirected                        |
| JSE Issuer Regulation             | Formal notification           | Jurisdiction declined                                       |
| SANC                              | Deregistration confirmed      | Deregistration constitutes occupational detriment under PDA |

**Eleven institutions. No substantive remedy. This disclosure to GEMS represents the final escalation within institutional frameworks before recourse to Parliament, international human rights mechanisms, and public disclosure.**

## 9. Statement of Intent

I submit this testimony for the following purposes:

- To provide full factual context to my formal Protected Disclosure
- To demonstrate that all disclosures and refusals were made in good faith and in accordance with my professional obligations
- To document the pattern of retaliation, suppression, and institutional failure
- To establish that my personal hardship is a direct, proximate consequence of the unlawful deduction and retaliatory conduct — not a separate or unrelated matter
- To place the GEMS Board on formal notice that a continuing failure to act on this disclosure will be treated as institutional complicity

**This is not a request. This is a disclosure with documented evidence, filed under legal protection, with full escalation pathways activated. I expect a substantive response.**

## 10. Parallel Legal Proceedings on Record

- Western Cape High Court: Case No. 2026-066952 — Matthee v Fernandes & Others (Section 162 Companies Act director delinquency application)
- Labour Court: Section 77A BCEA claim — filed 5 March 2026
- B-BBEE Commission: Case No. 5/02/2026 — investigation active
- Rule 42 rescission application and Judicial Conduct Tribunal complaint in preparation following procedural irregularities at hearing of 25 March 2026 (Judge Anderson)

## 11. Declaration

I affirm that the contents of this statement are true and correct to the best of my knowledge, information, and belief.

I am aware of the legal consequences of making a false statement and I do not make this statement lightly.

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**Wilbur William Matthee**

Registered Nurse Specialist | Forensic Governance Practitioner  
Founder, EthicHawks Forensic Governance Consultancy  
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Date: 2 April 2026

Signature: \_\_\_\_\_